

Ashcombe Advisory Partners LLC

www.ashcombeadvisory.com

April 18, 2022

Sandra Mcdaniel
Director of Operations
Kirby-Taylor

Dear Ms. Mcdaniel:

This letter sets out the terms on which Kirby-Taylor has retained Ashcombe Advisory Partners to build and run its media relations program: what we will do, who will do it, what it costs, and the terms we both agree to. I have kept it plain on purpose. Media work is won and lost on being clear, and there is no reason a letter about clear communication should be hard to read. If anything below does not match the conversation we had, say so before you sign rather than after.

Scope of the Engagement

The engagement is a media relations program: to put Kirby-Taylor in front of the right reporters and outlets, with the right story, told the same way each time. In practice that means a read of the current media landscape and how the company is covered today, a short set of core messages agreed in writing, a working media list, and the materials and preparation your spokespeople need to speak to a reporter without improvising. We do not control what a reporter writes. What we can control, and what you are retaining us for, is that the company goes into every conversation prepared, consistent, and pointed at the outcome you want.

Our method is plain and we have used it for years. We start by reading and listening before we pitch anything: who covers your sector, what has been said about you and your peers, and where the honest openings are. From there we agree the core messages and the proof behind them, because a message a reporter cannot verify does you no good. Then we build the list, prepare the spokespeople, and go out in a sequence we have thought through rather than all at once. Through the program we stay close and reachable, and we would rather you call us with a small question early than sit on a large one.

The Team

Laura Bradley will carry this engagement day to day and is your point of contact for anything of substance. She writes much of what leaves this firm for a client, matches the register to the audience, and has a good eye for the line a reporter will read the wrong way before it goes out. When you need something moved, go to Laura Bradley first.

Kimberly Le and Melissa Zimmerman support the work in the ways it needs. Kimberly Le does the close reading of your coverage and the market around it and writes the findings up so a decision rests on evidence rather than instinct. Melissa Zimmerman keeps the announcement calendar and the media list in order and tracks who still owes what, so nothing agreed in a meeting quietly falls through. Between the three of them you will always know what is done and what is still open.

I lead this firm and I read the work that leaves it. I will not be on every call, but I am reachable directly, and if the program is not going the way you need it to I would far rather hear that from you first than read it later.

Fees and Payment

Our fee for this engagement is \$46,000, fixed at the outset and quoted as a single figure rather than a rate against hours. We work to a fixed fee because it keeps our attention on the work instead of the clock, and because you should be able to call us with a question without watching a meter run. The fee is billed in equal monthly installments across the term, the first on commencement. Reasonable out-of-pocket costs that you approve in advance, such as a wire service distribution or travel to prepare a spokesperson, are billed at cost and itemized on each invoice. Invoices are payable within thirty days of receipt.

Term and Termination

The engagement commences on April 28, 2022 and runs approximately four months, which is the basis on which we have planned the program, though we will flag it early if the work calls for more or less. Either of us may end the engagement on fifteen days' written notice. If you end it, you owe the installments that have fallen due and the approved costs incurred to that date, and nothing further. If we end it, which we would do only if the work as agreed had become work we could not do well, we will return any fee already paid for work not yet performed.

Confidentiality

We will treat your internal information, your plans, and the fact and content of this engagement as confidential, and we will use anything you tell us about Kirby-Taylor that is not already public only to do the work you have retained us for, sharing it no wider than the people on each side who need it. Where a piece of news carries its own timing, we follow yours and not our own convenience. We ask the same discretion of you regarding our methods and our materials.

Limitation of Liability

We will carry out this engagement with the care and skill customary in our profession. We do not decide how a reporter frames a story or whether an outlet runs it at all, and we do not warrant any particular placement or result, because the parts that decide it are not ours to command. Our total liability under this engagement, on any theory, is limited to the fees actually paid to us for it, and neither of us is liable to the other for indirect or consequential loss. Nothing here limits liability for fraud or willful misconduct, and nothing should.

Governing Law

This letter is the entire agreement between us on this engagement and replaces anything said or drafted before it. It is governed by the law of the state in which this firm keeps its principal office, and any dispute we cannot settle between ourselves goes to the courts sitting in that state, to whose jurisdiction we each consent. It may be amended only in writing signed by both of us.

Acceptance

If this letter reflects our agreement, please sign below and return one copy to me. Laura Bradley will be in touch within the week to set the kickoff and to agree the first pieces of work. We are glad Kirby-Taylor has asked us to run this program, and we are ready to start.

Very truly yours,

Julie Hill

Managing Partner

Date: April 18, 2022

Sandra Mcdaniel

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Director of Operations, Kirby-Taylor

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